

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

Date Purchased:

-----X
EDDY FLEURELUS

SUMMONS

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

-against-

NEW YORK CITY POLICE DEPARTMENT, THE CITY
OF NEW YORK AND POLICE OFFICER GIANCARL
PROIETTI

The basis of venue is:
CPLR 503

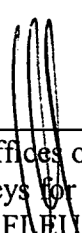
Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: BROOKLYN, NEW YORK
April 9, 2024



Law Offices of William Pager
Attorneys for Plaintiff
EDDY FLEURELUS
205 Kings Highway
Brooklyn, New York 11223
718-998-1010
Our File No. 4916SK

TO: NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, NY 10007-2341

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007-2341

GIANCARL PROIETTI
100 Church Street
New York, NY 10007-2341

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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EDDY FLEURELUS

Plaintiff,

-against-

NEW YORK CITY POLICE DEPARTMENT, THE CITY
OF NEW YORK AND POLICE OFFICER GIANCARL
PROIETTI

Defendants.
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VERIFIED COMPLAINT

Plaintiff, **EDDY FLEURELUS** by his attorneys, **LAW OFFICES OF WILLIAM
PAGER**, as and for their Verified Complaint, states follows:

1. That at all times herein mentioned, Plaintiff **EDDY FLEURELUS** was, and still is, a resident of the County of Kings and State of New York.

2. That this action falls within one or more of the exceptions set forth in CPLR §1602.

3. That prior hereto and on October 5, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Defendants **NEW YORK CITY POLICE DEPARTMENT AND THE CITY OF NEW YORK** and that thereafter said Defendants refused or neglected for more than forty (40) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

4. That the municipal Defendants failed to schedule and hold the 50-H Statutory Hearing within the time prescribed by law. G.M.L. 50(i)1(b)

5. That this action is being commenced within one year and ninety days after accrual of this action, or within the time allowed by law.

6. That at all times herein mentioned, Defendant **THE CITY OF NEW YORK** is a statutory municipal entity existing pursuant to the laws of the State of New York.

7. That at all times herein mentioned, Defendant **THE CITY OF NEW YORK** was and still is, a municipal corporation.

8. That at all times herein mentioned, Defendant **THE CITY OF NEW YORK** maintains a department of police and police force.

9. That at all times herein mentioned, Defendant **NEW YORK CITY POLICE DEPARTMENT** is a department of **THE CITY OF NEW YORK** and a statutory entity existing pursuant to the laws of the State of New York.

10. That at all times herein mentioned, Defendant **NEW YORK CITY POLICE DEPARTMENT** was and still is a municipal agency and a department of the City of New York.

11. That at all times herein mentioned, Defendant **GIANCARL PROIETTI** was a police officer employed by **NEW YORK CITY POLICE DEPARTMENT** and an employee of the City of New York.

12. That at all times herein mentioned, Defendant **GIANCARL PROIETTI** was a police officer employed by **NEW YORK CITY POLICE DEPARTMENT** and an employee of the City of New York, and he was in course of his employment with these co-defendants.

13. That at all times herein mentioned, and on August 3, 2023, at approximately 10:00 a.m., Plaintiff was falsely arrested by the Defendants herein.

14. That at all times herein mentioned at approximately 10:00 a.m. on August 3, 2023, at or about Ralph Avenue, Brooklyn, New York, Plaintiff was unlawfully and improperly stopped,

detained, injured, and arrested by police officer, including P.O. Proietti, Giancarl, Shield 23706 (command 063).

15. The Plaintiff was falsely accused of, inter alia, stealing a truck which had actually belonged to the Plaintiff and which had earlier been released to him by NYPD, 103rd Precinct.

16. That at all times herein mentioned, and on August 3, 2023, Plaintiff was assaulted and battered by the Defendants herein.

17. That at all times herein mentioned, and on August 3, 2023, Plaintiff was falsely imprisoned without due cause.

18. That at all times herein mentioned, and on August 3, 2023, Defendants, used excessive force in stopping, detaining, assaulting and arresting the Plaintiff herein.

19. That at all times herein mentioned, and on August 3, 2023, Defendants violated Plaintiff's constitutional rights in depriving him of his freedom and causing injury to his person without just cause.

20. At no time herein, did Plaintiff engage in any action, which would justify the arrest, assault and other wrongful acts towards the Plaintiff herein.

21. That the above mentioned occurrence, and the result thereof, were caused solely and exclusively by and through the failure of the Defendants, their agents, servants, representatives, employees to properly supervise, instruct and train their agents, servants, representatives, employees, of the Defendants **NEW YORK CITY POLICE DEPARTMENT AND THE CITY OF NEW YORK**, in the investigation, detaining, restraining and arresting of individuals; in negligent and improper detention, stop, accosting, assault, battery, false imprisonment, arrest, false prosecution, etc., of the Plaintiff, in promulgating, having, instituting and maintaining negligent and improper hiring and retaining practices; in failing to investigate employees and

potential employees; in failing to conduct adequate screening and background searches; in severely and viciously injuring the claimant; in using epithets and degrading language to and about Plaintiff and Plaintiff's presence; in failing to timely and adequately render medical assistance to Plaintiff; in violating Plaintiff's civil rights; in and otherwise being careless, reckless and negligent in, at, about and upon the subject premises.

22. That no negligence on the part of the Plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

23. That by reason of the foregoing, Plaintiff was caused to sustain serious injuries; to have suffered pain, shock and great mental anguish; that these injuries and their effects will be permanent; and that as the direct result of said injuries, Plaintiff has been caused to incur, and will continue to incur, expenses for medical care and attention.

24. That by reason of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdiction of all other Courts that would otherwise have and maintain jurisdiction over this matter.

25. The claim made by the Plaintiff comes under one or more of the exceptions to joint and separate liability pursuant to CPLR §1600.

AS AND FOR A FIRST CAUSE OF ACTION

NEGLIGENCE

26. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs above and herein.

27. That the Defendants, their agents, servants, and employees had a duty toward the Plaintiff, including but not limited to a special duty.

28. That the Defendants, their agents, servants, and employees had assumed, through promises or actions, of an affirmative duty to act on behalf of the Plaintiff;

29. That the Defendants, their agents, servants, and employees knew that inaction could lead to harm;

30. That direct contacts existed between the That the Defendants, their agents, servants, and employees and the injured Plaintiff;

31. That the Plaintiff had justifiable relied on the Defendants, their agents, servants, and employees affirmative undertaking.

32. That the Plaintiff relied to his detriment on the government entity's affirmative undertaking, was induced by the police officers to forgo alternative options, and/or that the Plaintiff's reliance on the Defendants, their agents, servants, and employees placed the Plaintiff in a worse position than he would have been in if the Defendants, their agents, servants, and employees never assumed the duty to help.

33. That the Defendants, their agents, servants, and employees had breached their duty

34. That the Defendants, their agents, servants, and employees had located, retrieved and stored the truck which had belonged to the Plaintiff.

35. That the Defendants their agents, servants, and employees had restored and released the aforementioned truck, which had belonged to the Plaintiff, to the Plaintiff's possession.

36. That the Defendants, their agents, servants, and employees had a duty to reasonably conduct the process of releasing the truck to the Plaintiff, and to properly record within their records, the fact that the Defendants had appropriately released the aforementioned truck to the Plaintiff.

37. That the Defendants, their agents, servants, and employees had a duty to control the improper actions of those police officers, including the P.O. Proietti, as well as other officers for

the Defendants **NEW YORK CITY POLICE DEPARTMENT AND THE CITY OF NEW YORK.**, In their interaction, their detention, stop and arrest of the Plaintiff

38. That the Defendants, their agents, servants, and employees had a duty to reasonably protect members of the general public and/or visitors to the premises from the misconduct and improper actions of those members of the police force and/or officers for the Defendants **NEW YORK CITY POLICE DEPARTMENT AND THE CITY OF NEW YORK.**

39. That on the day of the incident, the Defendants breached its duty of care, negligently, careless and or recklessly permitting the above described incident to take place.

40. That on the day of this incident, the Defendants, their agents, servants, and employees had unlawfully and improperly stopped, detained, injured, and arrested the Plaintiff, with these action being taken by various police officers, including by P.O. Proietti, Giancarl, Shield 23706 (command 063).

41. The Plaintiff was falsely accused of, inter alia, stealing a truck which had actually belonged to the claimant and which had earlier been released to him by NYPD, 103rd Precinct. As a result of the wrongful actions by the respondents, the Plaintiff had suffered injuries, physical and emotional and was taken to the Hospital. He was also issued a D.A.T. 063/00383 Arrest number K23639383

42. Upon information and belief, the Defendants knew or should have known that the improper and unlawful behavior of their agents, servants and or employees involved in the incident herein was foreseeable.

43. Upon information and belief, Defendants acted and/or failed to act in a way to keep the area reasonably safe for those lawfully thereat as described above.

44. Upon information and belief, Defendants breached their duty of care, negligently, carelessly and or recklessly ordering, directing, permitting, causing or allowing the above described conduct which let to the injuries and damages sustained herein.

45. That the actions of the Defendants included but not limited to arrest, the assault, battery, intentional and negligent infliction of emotional distress, etc., as well as the emotional and physical damages sustained by the Plaintiff were caused by the negligence, carelessness and/or recklessness of the Defendants herein.

46. As a result of the actions of the Defendants herein, Plaintiff was falsely arrested and detained by the Defendants without probable cause.

47. As a result of the aforesaid, Plaintiff seeks damages in the about of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR A SECOND CAUSE OF ACTION
ASSAULT

48. That at all times herein mentioned, Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs above and herein.

49. That the Defendants, their agents, servants and employees acted, intending to cause harmful conduct to the Plaintiff.

50. That Plaintiff reasonably was touched and assaulted in a harmful manner.

51. That Plaintiff did not consent to the Defendants assaultive conduct.

52. That Plaintiff was harmed by the Defendants assaultive conduct.

53. That Defendants assaultive conduct was a substantial factor in causing the Plaintiff's harm.

54. As a result of the aforesaid, Plaintiff was caused to be assaulted by the Defendants without due cause.

55. As a result of the aforesaid, the Plaintiff was damages and seeks a recovery for assault and use of excessive force in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR A THIRD CAUSE OF ACTION
BATTERY

56. That at all times herein mentioned, Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs above and herein.

57. The Defendants intended to cause harmful and offensive conduct with the Plaintiff's person.

58. The conduct was such to offend a reasonable sense of personal dignity and well being.

59. The Plaintiff did not consent to the touching and that the Plaintiff sustained harm, both physical and emotional by Defendants conduct.

60. As a result of the aforesaid, Plaintiff was caused to be battered by the Defendants.

61. As a result of the aforesaid, Plaintiff has been damaged and seeks damages for malicious prosecution in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR A FOURTH CAUSE OF ACTION
FALSE IMPRISONMENT & ARREST

62. That at all times herein mentioned, Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs above and herein.

63. As a result of the actions of the Defendants herein, Plaintiff was falsely and wrongly imprisoned and detained by the Defendants without probable cause.

64. That the defendants intended to confine the plaintiff.

65. That the plaintiff was conscious of the confinement and did not consent to the confinement, and that the confinement was not otherwise privileged

66. As a result of the aforesaid, Plaintiff seeks damages for false imprisonment in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR A FIFTH CAUSE OF ACTION

67. That at all times herein mentioned, Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs above and herein.

68. Plaintiff was injured as a result of the excessive force used by the Defendants herein.

69. Defendants were negligent, careless, reckless and grossly negligent in the manner in which they came in contact with the Plaintiff, causing Plaintiff unjustifiable harm.

70. As a result of the aforesaid, Plaintiff seeks damages for negligence, carelessness, recklessness and gross negligence in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR A SIXTH CAUSE OF ACTION

71. That at all times herein mentioned, Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs "1" above and herein.

72. As a result of the aforesaid, the Defendants maliciously prosecuted Plaintiff for the various offenses without probable cause and without basis for going forward with these charges.

73. As a result of the aforesaid, Plaintiff has been damaged and seeks damages for malicious prosecution in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR A SEVENTH CAUSE OF ACTION

74. That at all times herein mentioned, Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs above and herein.

75. As a result of the aforesaid, Plaintiff's constitutional rights both State and Federal were violated, including but not limited to, Article 14 of the Constitution and Section 1983 of the U.S. Code.

76. As a result of the aforesaid, Plaintiff seeks damages and legal fees as mandated by the State and Federal statutes, as a result of the aforesaid, Plaintiff seeks damages in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

77. That at all times herein mentioned, Plaintiff repeats, reiterates and re-alleges each and incorporated all of the facts and allegations expressed above as if alleged and incorporated herein.

78. The conduct of the Defendants in the above described behavior and actions was outrageous in that it exceeded all bound of decency, and that which a reasonable person would regard as intolerable in a civilized community and under the prevailing circumstances.

79. The conduct of the Defendants that gave the Defendants real or apparent power to affect the Plaintiff's interests and they knew that the Plaintiff was vulnerable to emotional distress and that their conduct would likely result in harm due to mental distress.

80. The Defendants intended to cause the Plaintiff emotional distress.

81. The Defendants acted with reckless disregard of the probability that the Plaintiff would suffer emotional distress, knowing that the Plaintiff was present when the conduct occurred.

82. The Plaintiff suffered both physical injuries and severe emotional distress that was substantial and that no reasonable person in a civilized society should be expected to bear, including but not limited to suffering, anguish, fright, horror, nervousness, grief, anxiety, worry, shock, humiliation and shame.

83. The conduct of the Defendants was a substantial factor in causing the Plaintiff's severe emotional distress.

AS AND FOR A NINTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

84. That at all times herein mentioned, Plaintiff repeats, reiterates and re-alleges each and incorporated all of the facts and allegations expressed above as if alleged and incorporated herein.

85. The conduct of the Defendants in negligently causing severe emotional distress to the Plaintiff by its extremely negligent, reckless and indifferent conduct, including but not limited to breach of its duty of care, allowing and fomenting the confrontation and the attack on the Plaintiff by its agents, servants and or employees which was outrageous in that it exceeded all bounds of decency, and that which a reasonable person would regard as intolerable in a civilized community and under the prevailing circumstances.

86. The conduct of the Defendants that gave the Defendants real or apparent power to affect the Plaintiff's interests and they knew that the Plaintiff was vulnerable to emotional distress and that their conduct would likely result in harm due to mental distress.

87. The Defendants were negligent, reckless and indifferent in their conduct, actions and or failure to act, which caused the Plaintiff emotional distress and/or physical injury.

88. The Defendants acted with reckless disregard of the probability that the Plaintiff would suffer emotional distress, knowing that the Plaintiff was present when the conduct occurred.

89. The conduct of the Defendants were so outrageous in nature and so extreme in degree that a reasonable member of the community would regard such conduct as atrocious, beyond all plausible bounds of decency and utterly intolerable in a civilized community.

90. As a direct result of the Defendants negligent, reckless and indifferent conduct, the Plaintiff suffered and is likely to continue suffering severe pain, emotional distress, mental anguish and physical injuries as the results of the above described assault, etc.

91. The Plaintiff suffered both physical injuries and severe emotional distress that was substantial and that no reasonable person in a civilized society should be expected to bear, including but not limited to suffering, anguish, fright, horror, nervousness, grief, anxiety, worry, shock, humiliation and shame.

92. The conduct of the Defendants was a substantial factor in caused the Plaintiff's severe emotional distress.

TENTH CAUSE OF ACTION
NEGLIGENT HIRING, RETENTION & SUPERVISION

93. That at all times herein mentioned, Plaintiff repeats, reiterates and re-alleges each and incorporated all of the facts and allegations expressed above as if alleged and incorporated herein.

94. That at the above-described time and place, Plaintiff was unlawfully and violently assaulted by the Defendants and Defendants Officers.

95. Defendants disregarded their duty to protect Plaintiff, failed to prevent the officers from threatening, assaulting, attacking and inflicting serious injuries upon Plaintiff and took no action to stop these unlawful acts.

96. Defendants were negligent in failing to provide adequate security so as to protect Plaintiff, who was a citizen and entitled to security and protection, and carelessly failed to take all and reasonable necessary precautions to prevent this occurrence.

97. The occurrence was occasioned solely and wholly as a result of the negligence of Defendants **NEW YORK CITY POLICE DEPARTMENT AND THE CITY OF NEW YORK** in their supervision, training, hiring and retention of the officers.

98. Defendants **NEW YORK CITY POLICE DEPARTMENT AND THE CITY OF NEW YORK** knew or should have known that prior to, at and subsequent to the time when Defendants employed and engaged Defendants officers, they were persons of incompetence and indifference; had previously caused other individuals to be falsely imprisoned without just cause or provocation and was known by general reputation to be incompetent and indifferent.

99. Defendants **NEW YORK CITY POLICE DEPARTMENT AND THE CITY OF NEW YORK** failed and neglected to make any, or appropriate, inquiries with respect to the competence and temperament and character of Defendants and their officers, prior to, at or subsequent to the time Defendants **NEW YORK CITY POLICE DEPARTMENT AND THE CITY OF NEW YORK** employed them.

100. By reason of the above, Defendants **NEW YORK CITY POLICE DEPARTMENT AND THE CITY OF NEW YORK** were negligent in hiring and retaining Defendants officers.

101. As a result of the foregoing, Plaintiff suffered serious, severe personal and emotional injuries, medical expenses and out-of-pocket expenses all to his damage in the sum of money which exceeds the monetary jurisdiction of all lower courts.

PUNITIVE DAMAGES

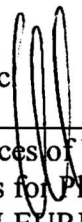
102. Because the Defendants conduct was malicious and oppressive, the Plaintiff is entitled to be awarded punitive damages to punish the Defendants for their wrongful conduct.

103. That as a result of the foregoing, Plaintiff was damaged in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS.

WHEREFORE, Plaintiff seek judgment against the Defendants on the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth, Causes of Action in the amount of \$1,000,000.00, and Plaintiff seek judgment against the Defendants on the Tenth Cause of Action in the amount of FIVE MILLION (\$5,000,000.00) DOLLARS, together with punitive damages, costs and attorney fees and the disbursements of this action.

Dated: Brooklyn, New York
April 9, 2024

Yours, etc



Law Offices of William Pager
Attorneys for Plaintiff
EDDY FLEURELUS
205 Kings Highway
Brooklyn, New York 11223
718-998-1010
Our File No. 4916SK

PLAINTIFF'S VERIFICATION

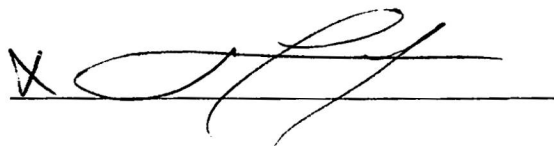
STATE OF NEW YORK

SS:

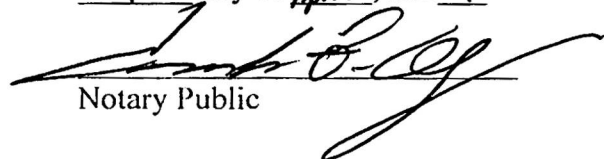
COUNTY OF KINGS

Eddy Fleurelus, being duly sworn, says: I am a Plaintiff in the action herein: I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: Brooklyn, New York

April 10th, 2024

Sworn to before me this

10th day of April, 2024
Notary Public

EARLE F. WEPRIN
Notary Public, State of New York
No. 01WE4623377
Qualified in Kings County
Commission Expires Dec. 31, 2026

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
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EDDY FLEURELUS

Plaintiff,

-against-

NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW YORK AND POLICE
OFFICER GIANCARL PROIETTI

Defendants.

SUMMONS AND COMPLAINT

Law Offices of William Pager
Attorneys for Plaintiff(s)
205 Kings Highway
Brooklyn, New York 11223
Phone: 718-998-1010
Fax: 718-998-8046

PLEASE TAKE NOTICE

That the within is a true copy of a _____ entered in the office of the clerk of the within
named Court on _____

That a _____ of which the within is a true copy will be presented for settlement to the Hon.
One of the Judges of the within named Court at _____ on
at 9:30 a.m.

Due and timely service of the within _____ is hereby admitted

Dated:

X _____

Attorneys for